25TRCV03633 25TRCV03633

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Moving
Parties: Defendant Lyft, Inc.

Responding
Party: Plaintiff Katrina Green

Motion
to Compel Arbitration

The Court considered the moving, opposition, and reply
papers.

RULING

The motion to compel arbitration is GRANTED and the
action is STAYED as to defendant Lyft only.

BACKGROUND

On October
22, 2025, plaintiff Katrina Green filed a complaint against Crystal Moore,
Miguel Angel Bermudez Garcia, and Lyft, Inc. for motor vehicle negligence and
general negligence as to an incident that occurred on September 5, 2024 at the
intersection of Western Ave. and 154th Street, Gardena.

On
April 15, 2026, the Court granted intervenor Mobilitas Insurance Company's motion to intervene to file an answer as to defendant Crystal Moore.

LEGAL
AUTHORITY

Under
CCP § 1281, a "written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and revocable, save upon such grounds as exist for the revocation of any contract."

Under
CCP § 1281.2, "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: . . . (c) A party to the arbitration agreement is also a party to a pending court action . . . with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. . . . (d) . . . . If the court determines that a party to the arbitration is also a party to litigation in a pending court action . . . with a third party as set forth under subdivision (c) herein, the court (1) may refuse to enforce the arbitration agreement . . . ; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action . . . pending the outcome of arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding."

DISCUSSION

Defendant
Lyft, Inc. requests that the Court compel arbitration and stay the case.

Existence of an agreement to arbitrate

"As

stated in Cione v. Foresters Equity Services, Inc. (1997) 58 Cal. App. 4th 625, 634 'The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. There is no public policy favoring arbitration of disputes that the parties have not agreed to arbitrate.'" Lopez v. Charles Schwab & Co., Inc. (2004) 118 Cal. App. 4th 1224, 1229.

Defendant contends that on September 5, 2024, plaintiff was a passenger using rideshare services arranged on the Lyft application, website and technology platform with defendant Crystal Moore, when defendant Moore and a third party's vehicle collided.

Defendant Lyft asserts that plaintiff affirmatively accepted Lyft's Terms through the Lyft App on six separate occasions, before and after the incident. On December 1, 2016, plaintiff created a Lyft user account and affirmatively agreed to Lyft's Terms of Service dated September 30, 2016. Defendant states that she subsequently agreed to updated Terms on October 21, 2020, January 19, 2022, April 28 and August 25, 2023, and December 11, 2024. Defendant contends that the December 12, 2022 Terms were in effect as to plaintiff at the time of the incident. Defendant explains that the Lyft App directed plaintiff to scroll through and read the entire Lyft Terms, and that at the bottom of the screen, immediately under the full text of the Lyft Terms, the Lyft App presented plaintiff with a button labeled, "I Agree," which plaintiff was required to click to demonstrate consent and agreement to be bound by the Terms and to proceed with the use of the Lyft App. Defendant asserts that plaintiff could not have used the Lyft App to request or purchase any of her twenty-two rides on the Lyft Platform, including the ride involved in the incident without having affirmatively accepted the Lyft's Terms by clicking the "I Agree" button.

Defendant asserts that the introduction on the first page of the Terms states, in part, in all caps: "Please be advised: This agreement contains provisions that govern how claims between you and Lyft can be brought (see Section 17 below). These provisions will, with limited exception, require you to: (1) wavier your right to a jury trial, and (2) submit claims you have against Lyft to binding and final arbitration . . . ."
The "Section 17 below" is a hyperlink that takes the reader directly to the full arbitration provision within the Terms. The arbitration agreement states, in all caps, "You and Lyft mutually agree to waiver our respective rights to

resolution of disputes in a court of law by a judge or jury and agree to resolve any dispute by arbitration.” The scope of the agreement covered “any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: . . . . the Lyft Platform, the Rideshare Services, . . . any other goods or services made available through the Lyft Platform, . . . and all other federal and state statutory and common law claims.”

Defendant further notes that the arbitration agreement includes a delegation clause stating that any dispute “concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator” and a choice-of-law provision, providing that the arbitration agreement “is governed by the Federal Arbitration Act” and “survives after the Agreement terminates or your relationship with Lyft end.” See Colton Carr decl.

Defendant further argues that compelling arbitration as to Lyft and staying the case as to Lyft does not impact plaintiff’s ability to litigate her claims against driver Moore and suggests that plaintiff can dismiss Lyft and proceed against Moore alone because Moore is allegedly covered by a $1 million insurance policy procured by Lyft.

In opposition, plaintiff argues that there is a risk of inconsistent rulings if the Court compels arbitration and stays case against Lyft as driver Moore is not subject to the arbitration or stay. Plaintiff also asserts that defendant has not shown that the purported arbitration agreement is enforceable because it relies entirely on Lyft’s own electronic records. Plaintiff further contends that Lyft has not shown that the operative December 12, 2022 Terms expressly displace California procedural law or that CCP §1281.2(c) does not apply.

In reply, defendant asserts that plaintiff does not dispute that she affirmatively consented and mutually agreed to Lyft’s Terms of Service. Defendant further contends that any arbitrability claims are for the arbitrator to decide under the delegation clause. Defendant also reiterates that the agreement unambiguously and explicitly requires Lyft and plaintiff to submit “all disputes and claims between” them to arbitration. Defendant also argues that the “third party exception under CCP §1281.2(b) does not apply because the FAA governs the agreement.

The Court finds that an arbitration agreement exists between plaintiff and defendant Lyft and that the FAA applies.

Scope of agreement and enforceability

Defendant Lyft argues that the scope and validity and enforceability of the arbitration agreement in the Terms of Use must be decided by the arbitrator, not the Court, because the arbitration provision contains an express delegation clause.

In opposition, plaintiff argues that the delegation clause does not deprive the Court or its authority to apply CCP §1281.2(c).

The delegation clause provides that any threshold disputes “concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator.”

To be enforceable, the “delegation clause” itself must be clear and unmistakable, and not revocable under state contract defenses such as fraud, duress, or unconscionability. Tiri v. Luck Chances, Inc. (2014) 226 Cal. App. 4th 231, 242. See also B.D. v. Blizzard Ent., Inc. (2022) 76 Cal. App. 5th 931, 957 (arbitration agreement clearly and unmistakably delegates question of arbitration to arbitrator by statement that the arbitration “has authority to decide all issues of arbitrability”).

The Court finds that the delegation clause is clear and unmistakable and thus delegates to the arbitrator to determine the scope and enforceability of the arbitration agreement.

The
motion is GRANTED.

ORDER

The
motion to compel arbitration is GRANTED.

The
action is STAYED as to defendant Lyft only.

Defendant
is ordered to give notice of the ruling.